

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

April 16, 2026

8:30 a.m./1:30 p.m.

15. PAMELA DEHERRERA V. JULIAN DEHERRERA

23FL0888

Petitioner filed a Request for Order (RFO) on March 10, 2026, seeking property control and a move out order. Respondent was personally served in accordance with Family Code section 215 on March 20, 2026.

Respondent has not filed a Responsive Declaration to Request for Order. Where a party fails to timely file opposition papers the court, in its discretion, may treat said failure “as an admission that the motion or other application is meritorious.” El Dorado County, Local Rule 7.10.02(C). Here, the RFO was timely and properly served on Respondent. He had notice of the pending request and chose not file an opposition. As such, the court finds good cause to treat his failure to do so as an admission that the claims made in the RFO are meritorious.

Petitioner filed a Supplemental Declaration on April 7, 2026. Respondent was served on April 6, 2026. The court finds this to be untimely, as it was filed less than 10 days prior to the hearing.

The court grants Petitioner’s motion in its entirety. Petitioner is granted exclusive use and control of the property. Respondent is to pay the property taxes owing for April 2026. Respondent is to vacate the property by no later than April 30, 2026.

Respondent is ordered to take no action which would delay, hinder, or otherwise prevent the sale, including actions which would prevent cleaning, repairs, and maintenance or showing of the home in furtherance of its sale. The parties are ordered to cooperate with the real estate professional to make the home available for showings and to communicate with the real estate professional as needed. The real estate professional is authorized to determine the listing price for the home. The parties are ordered to accept any reasonable offer for the purchase of the home if one is received. The parties are to sign all documents related to the sale of the home in a timely manner. The court reserves jurisdiction over all aspects of the sale and distribution of the net proceeds of the sale, including, but not limited to, the court’s authority to direct the clerk to act as elisor for Respondent’s signature if necessary.

All prior orders not in conflict with this order remain in full force and effect. Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court’s adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

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TENTATIVE RULING #15: THE COURT GRANTS PETITIONER'S MOTION IN ITS ENTIRETY. PETITIONER IS GRANTED EXCLUSIVE USE AND CONTROL OF THE PROPERTY. RESPONDENT IS TO PAY THE PROPERTY TAXES OWING FOR APRIL 2026. RESPONDENT IS TO VACATE THE PROPERTY BY NO LATER THAN APRIL 30, 2026.

RESPONDENT IS ORDERED TO TAKE NO ACTION WHICH WOULD DELAY, HINDER, OR OTHERWISE PREVENT THE SALE, INCLUDING ACTIONS WHICH WOULD PREVENT CLEANING, REPAIRS, AND MAINTENANCE OR SHOWING OF THE HOME IN FURTHERANCE OF ITS SALE. THE PARTIES ARE ORDERED TO COOPERATE WITH THE REAL ESTATE PROFESSIONAL TO MAKE THE HOME AVAILABLE FOR SHOWINGS AND TO COMMUNICATE WITH THE REAL ESTATE PROFESSIONAL AS NEEDED. THE REAL ESTATE PROFESSIONAL IS AUTHORIZED TO DETERMINE THE LISTING PRICE FOR THE HOME. THE PARTIES ARE ORDERED TO ACCEPT ANY REASONABLE OFFER FOR THE PURCHASE OF THE HOME IF ONE IS RECEIVED. THE PARTIES ARE TO SIGN ALL DOCUMENTS RELATED TO THE SALE OF THE HOME IN A TIMELY MANNER. THE COURT RESERVES JURISDICTION OVER ALL ASPECTS OF THE SALE AND DISTRIBUTION OF THE NET PROCEEDS OF THE SALE, INCLUDING, BUT NOT LIMITED TO, THE COURT'S AUTHORITY TO DIRECT THE CLERK TO ACT AS ELISOR FOR RESPONDENT'S SIGNATURE IF NECESSARY.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THIS ORDER REMAIN IN FULL FORCE AND EFFECT. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.